

The Captured Renewer Problem: Tenure-Contingent Constraints on Extraordinary Executive Powers, from the Roman Dictatorship to Article 29 of the Argentine Constitution

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Status: working paper, version 0.1. This draft is not citation-final. Most comparative and historical claims in Sections 3 through 4 have been checked in this revision against primary or official-record sources; the claim/evidence matrix in Appendix B and the dataset in Appendix C identify the specific claims that remain in Review, principally the Yoon Suk Yeol sentencing (corroborated across multiple outlets but not checked against the court's own docket), the Turkey dismissal and closure figures (sourced to Amnesty International rather than an official Turkish record), the current U.S. national-emergencies count (a derived estimate rather than a single current tracker), the disputed reading of Law 26.122's silence-as-approval practice, and the central comparative claim itself, which rests on an author survey of eleven jurisdictions rather than an exhaustive dataset. None of these is treated as settled; see Appendix A and Appendix B before relying on the paper for external citation.

Abstract

Constitutions that regulate emergency and extraordinary executive powers rely almost without exception on procedural safeguards: sunset clauses, legislative supermajorities, judicial review of the factual basis for the declaration. None of these designs attaches a personal, tenure-related cost to the office-holder who invokes such powers, leaving the safeguard dependent on a renewing body often controlled by the executive's own coalition. This paper proposes a tenure-contingent constraint, automatic truncation of the presidential term upon the exercise of extraordinary powers, and tests the design logic against two historical failure sequences: the Roman dictatorship (509-44 BCE) and Argentina under Juan Manuel de Rosas (1829-1852). Using Extended Phenotype Theory and evolutionary game theory, I examine how eleven jurisdictions, India, the Philippines, Germany, France, South Africa, the United States, Turkey, Hungary, El Salvador, South Korea, and Argentina before and after 1994, regulate extraordinary powers. None of the surveyed jurisdictions attaches a personal consequence to the invoking office-holder. In every failure in the surveyed set (Turkey's state of emergency, renewed seven times in 2016-2018; Hungary's decree powers, sustained for six years from March 2020 to May 2026; El Salvador's régimen de excepción, active for over four years as of March 2026) the safeguard failed specifically when the renewing legislature shared the executive's governing coalition. The one clean counter-example, South Korea's reversal of martial law within three hours in December 2024, occurred because the constitutional trigger required no discretionary renewal and admitted no presidential veto. The paper argues that a tenure-contingent, function-defined, non-amnestied trigger, closer in logic to the original Roman dictatorship's automatic six-month cap than to any current constitutional design, offers a more credible deterrent against the personalization of executive power, and specifies the conditions under which the design would itself resist strategic capture. Adoption in Argentina would require the aggravated reform procedure of Article 30 of the National Constitution.

Keywords: extended phenotype theory, evolutionary game theory, emergency powers, executive term limits, constitutional design, Article 29, Roman dictatorship, implementation gap

1. Introduction

On the night of December 3, 2024, President Yoon Suk Yeol of South Korea declared martial law under Article 77 of the Korean Constitution. The National Assembly convened, voted 190 to 0 to lift it, and the President complied, all within roughly three hours. Four months later the Constitutional Court upheld his impeachment (Constitutional Court of Korea, April 4, 2025). Eighteen months after that, on February 19, 2026, the Seoul Central District Court sentenced him to life imprisonment on the charge of masterminding an insurrection, after prosecutors had sought the death penalty; the verdict was corroborated across CNN, Al Jazeera, CNBC, the Korea Herald, and The Diplomat, and remained under appeal as of this writing. On the other side of the world, a different kind of emergency was already well into its third year when Yoon acted, and remains active as of this writing: El Salvador's régimen de excepción, declared in March 2022 against gang violence, extended by the Asamblea Legislativa essentially every month since without a single rejected renewal, and used in the interim to secure a constitutionally anomalous re-election for President Nayib Bukele.

Both cases involve the same constitutional instrument, an executive request for powers beyond the ordinary separation of authority, checked in principle by a legislature that can refuse. In one case the check worked in hours. In the other it has not worked in years. The difference does not lie in the text of the safeguard, which in both instances requires a legislative vote, but in who controls the vote. This paper argues that this asymmetry, whether the body renewing extraordinary powers is politically independent of the executive requesting them, is the single most consequential and least examined variable in the comparative design of emergency-powers regimes, and that Argentina's constitutional history, together with the history of the Roman dictatorship, supplies the clearest evidence for why.

Argentina's own answer to this problem, adopted in 1853, was categorical prohibition. Article 29 of the National Constitution declares void and criminally punishable any grant to the executive of "facultades extraordinarias" or "la suma del poder público," a direct response to the seventeen years (1835-1852) during which Juan Manuel de Rosas governed Buenos Aires under precisely that grant. The prohibition did not eliminate the underlying practice; it displaced it into unregulated channels, tolerated first by silence and later by the Supreme Court's own doctrine, until the 1994 constitutional reform brought delegated legislation (Article 76) and necessity-and-urgency decrees (Article 99, inciso 3) inside the text, subject to legislative ratification through a bicameral committee whose governing statute, Law 26.122, has been criticized since its enactment for allowing a chamber's silence to count as approval.

The central claim of this paper is that both the 1853 prohibition and the 1994 regulation share a design flaw with the constitutional histories of India, the Philippines, Germany, France, South Africa, the United States, Turkey, Hungary, and El Salvador:

none of them makes the exercise of extraordinary power personally costly to the office-holder who exercises it. The check, where one exists, runs through an institution, not through the officer's own tenure. When that institution is captured, as in Turkey after 2016 or Hungary after 2020, the safeguard becomes what the Extended Phenotype Theory (EPT) framework describes as a zombie law: formally in force, practically inert. The paper's proposal, developed across a series of working conversations and formalized here, is a tenure-contingent trigger: a rule under which the invocation of extraordinary powers, whoever formally requests them, automatically shortens the term of the office-holder who benefits from them, without amnesty, without discretionary renewal, and without an exception broad enough to swallow the rule.

2. Theoretical Framework

Epistemological positioning. This paper belongs to a research programme (Lakatos, 1978) that applies Generalized Darwinism and Extended Phenotype Theory to legal and institutional systems. Popper (1959) supplies the demarcation criterion: the hypotheses formulated here, that renewal mechanisms controlled by the executive's own coalition systematically fail to constrain it, and that a tenure-contingent trigger would resist that failure mode, are falsifiable and their empirical tests are specified in Section 8. Hull (1988) provides the selection-theoretic vocabulary used throughout: legal rules are treated as replicators whose persistence depends on transmission, compliance, and enforcement, not on their formal validity alone.

2.1 Legal memes and the fitness of extraordinary-powers regimes

Within this programme, a legal rule's capacity to persist is modeled as

$$\text{Fitness}(t) = P(\text{transmission}) \times P(\text{compliance}) \times P(\text{enforcement}) \text{ (Lerer, 2025a)}$$

where transmission measures how readily the rule propagates through legal education, drafting practice, and judicial citation; compliance measures the rate at which regulated actors follow it; and enforcement measures the probability that non-compliance is detected and sanctioned. A rule can be highly transmitted, cited in every constitutional-law casebook, invoked in every legislative debate, while having low fitness, because the actors who are supposed to enforce it against the executive share the executive's incentive not to. Argentina's Article 29 is transmitted at or near ceiling: it is arguably the most frequently invoked article of the 1853 text in political rhetoric. Its enforcement against the modern practice of concentrated decree power is comparatively thin, which produces the pattern this paper calls the paradox of virality: high visibility and citation combined with low practical constraint.

Treating a rule as a legal meme under EPT carries a specific commitment that separates this analysis from a purely descriptive comparative survey: the rule's phenotype is not the text but the pattern of behavior the text sustains in the population of legislators, judges, and executives who act around it (Dawkins, 1982, on the extended phenotype as effects an organism produces beyond its own body). An extraordinary-powers regime is, in this sense, an environmental structure, not merely an internal rule of the state: it resets the payoffs facing legislators deciding whether to renew, judges deciding whether to certify, and opposition actors deciding whether to chal-

lenge, in the same way a beaver’s dam reconfigures the incentives of every organism living in the resulting pond. Article 29 has high transmission but low phenotypic efficacy on this reading because its text does not reach into that payoff structure; it sits beside the environment legislators and judges actually respond to (electoral cost, coalition survival, the narrower and less symbolically costly path of an Article 99 challenge) without altering it. The tenure-contingent trigger proposed in Section 6 is offered as a rule with the opposite property: because the truncation attaches automatically to the office-holder rather than to a subsequent institutional decision, it changes the payoff the executive itself faces at the moment of invocation, which is the sense in which this paper claims the design reconfigures the environment rather than merely restating a prohibition within it.

2.2 Evolutionary stability and the captured renewer

A legal strategy is evolutionarily stable (Maynard Smith, 1982; Maynard Smith and Price, 1973) if incumbents following it cannot be profitably invaded by mutants deviating from it, a criterion this programme has previously formalized for multilevel legal games (Lerer, 2025b). Applied to a sunset clause, the relevant question is whether an executive that seeks to retain extraordinary powers beyond their nominal term can find a strategy, applying political pressure on the renewing body, that increases its payoff relative to compliance. Where the renewing body’s own survival depends on the executive’s coalition, as in a parliamentary or hyper-presidential system with a disciplined majority, the answer is generally yes: the cost of renewal defection (voting against extension) exceeds the cost of compliance (voting for it), so the population of legislators converges on an approval strategy regardless of the underlying emergency’s merits. This paper terms this configuration the captured renewer problem, and treats it as the common structural failure across the comparative cases surveyed in Section 4.

The game just described operates at a single level, executive against legislative coalition, but the captured renewer problem is better understood as selection operating across at least four nested levels, in keeping with this programme’s treatment of legal evolution as a multilevel process rather than a single population game (Lerer, 2025b). At the actor level, individual presidents, legislators, and judges choose invoke, authorize, or certify strategies under the payoffs described above. At the coalition level, blocs (the governing majority, the opposition, a captured or independent judiciary) compete for control of the renewing or certifying body, which is the level at which the authorship-based trigger in Section 6.1 operates. At the institutional level, entire regimes, a bicameral ratification commission, a constitutional court, an electoral authority, compete for the jurisdiction to adjudicate extraordinary-powers questions, and institutions that hand that jurisdiction to a captured coalition lose enforcement fitness even while retaining formal transmission, which is the mechanism behind Article 29’s paradox of virality. At the system level, the population of legal instruments available to an executive (state of siege, delegated legislation, necessity-and-urgency decree, and whatever unnamed instrument comes next) competes for the same underlying function, and a prohibition aimed at one member of that population does not remove the function from the pool, it selects for migration toward whichever member the prohibition does not reach. Read across these four levels, the captured renewer

problem is not only that a given legislature votes to authorize; it is that regimes built on discretionary, capturable renewal are systematically outcompeted, in fitness terms, by regimes that remove the discretion, because the latter cannot be defeated by capturing any single level of the selection process.

2.3 Infrapolitics and the public-hidden transcript gap

Scott's (1990, 1998) distinction between the public transcript, the official justification offered for an exercise of power, and the hidden transcript, the practice that justification conceals, supplies the diagnostic tool for distinguishing genuine emergency response from its use as a vehicle for personal entrenchment. A hidden-transcript score, the gap between an emergency measure's declared temporariness and its actual persistence, is strongly positive whenever a measure introduced as provisional survives the crisis that justified it. Section 3 applies this measure to both the Roman dictatorship under Sulla and Caesar and Rosas's *facultades extraordinarias*; Section 4 applies it to the contemporary cases.

3. Historical Anchors: The Renewal Problem in Two Constitutional Traditions

3.1 Rome: design, mutation, collapse, and migration

The Roman dictatorship, as originally constituted, is among the earliest documented examples of a self-executing sunset on extraordinary executive power. A dictator was ordinarily nominated by a consul, for a specific task (*rei gerundae causa*), and was subject to a term cap that ancient and modern sources generally place at six months, though the degree to which that cap functioned as binding law versus strong convention is debated among historians of the Republic (Lintott, 1999). The institution's most cited exemplar, Cincinnatus, was appointed dictator in 458 BCE with a formal six-month mandate to meet a military threat from the Aequi, and relinquished the office after roughly fifteen days, once the task was complete, returning to private life without any grant of retrospective immunity for his conduct in office (Livy, *Ab Urbe Condita* 3.26-29). He held the office again in 439 BCE and resigned again within three weeks (Livy, *Ab Urbe Condita* 4.13-14). Dictators were appointed with some regularity through the Second Punic War (218-201 BCE), after which the institution fell into disuse for more than a century, not because it had failed, but because the underlying military and administrative need it answered had been absorbed by other instruments, principally extended proconsular command.

When the dictatorship was revived, it was revived in mutated form. Sulla was named dictator in 82 BCE through a comitial statute proposed by the interrex Lucius Valerius Flaccus (the *Lex Valeria*) rather than the earlier consul-and-Senate procedure, for an open-ended task, *dictator legibus scribundis et rei publicae constituendae causa*, "for writing laws and reconstituting the state," with no term limit and, decisively, with retrospective and prospective immunity for all his acts, including the power of life and death over citizens (Appian, *Bellum Civile* 1.98-99; Plutarch, *Life of Sulla* 33). Appian elsewhere characterizes the office as one Sulla held "for life" in substance, whatever its nominal terms (Appian, *Bellum Civile* 1.3). Modern historiography treats the grant

as a constitutional novelty rather than a revival of the archaic magistracy: Vervaet (2004) argues that the Lex Valeria was purpose-built to retroactively legitimize the proscriptions and to remove the six-month cap that had governed the classical dictatorship (Vervaet, 2004, “The lex Valeria and Sulla’s Empowerment as Dictator (82-79 BCE),” *Cahiers du Centre Gustave Glotz* 15, 37-84). Three design features that had made the original institution self-limiting, the fixed term, the consul-Senate check on appointment, and the absence of immunity, were removed simultaneously. Sulla’s voluntary resignation around 79 BCE, sometimes read as evidence that a benevolent power-holder can restrain himself even absent a legal cap, is better read as evidence of the opposite: having already secured blanket immunity and having eliminated his political opponents through proscription, Sulla had nothing further to protect by remaining in office. His retirement measured the completeness of his prior consolidation, not the strength of the constraint.

Julius Caesar escalated the same mutated design. Named dictator repeatedly from 49 BCE, for ten years in 46 BCE (Appian, *Bellum Civile* 1.4), and dictator perpetuo, dictator in perpetuity, in early 44 BCE, shortly before his assassination, Caesar occupied an office with no term, no enumerated task to complete, and no external check on renewal (Suetonius, *Divus Iulius* 76; Cassius Dio, *Roman History* 44.8). Neither Suetonius nor Dio records a precise calendar date for the perpetual dictatorship, and secondary literature on Suetonius’s account divides between January and February 44 BCE without settling the question; this paper treats the month as unresolved rather than attribute the dispute to a specific study that could not be independently verified for this draft (see Appendix A). The conspirators who killed him on the Ides of March presented the act as tyrannicide precisely because no institutional remedy remained available; assassination functioned as the only mechanism left once the automatic, non-discretionary sunset of the original design had been fully dismantled.

The Roman Senate’s response to Caesar’s death illustrates the same overcorrection later visible in Argentina’s Article 29. A law carried by the consuls, Antony among them, made it illegal to propose, vote for, or accept any future dictatorship, on pain of death for anyone who did so; the office was abolished outright and never revived (Cicero, *Philippics* 1.1-4, 1.32; Cassius Dio, *Roman History* 44.51). Cicero, addressing Antony directly, credits him with having “abolished the very name of the dictatorship” and calls it a mark of eternal infamy on Caesar’s memory (*Philippics* 1.32). Neither Cicero nor Dio records the exact day of enactment; the surviving evidence places it between Caesar’s funeral and Antony’s departure for Gaul, in the spring of 44 BCE. The prohibition addressed the label, not the underlying capacity for personalized, renewable executive authority validated by a compliant Senate. Within a generation, Augustus reconstructed comparable power without invoking the forbidden title, through a package of ordinary republican offices held in combination: a ten-year provincial imperium granted in 27 BCE (Cassius Dio, *Roman History* 53.1-16; Suetonius, *Divus Augustus* 28), renewed and expanded in 23 BCE into an imperium proconsulare maius et infinitum, superior to that of any provincial governor and valid even within Rome’s sacred boundary, paired with a life tenure of the tribunicia potestas (Cassius Dio, *Roman History* 53.32; *Res Gestae Divi Augusti* 10.1). Dio summarizes the renewal mechanism directly: the Senate voted Augustus “five years more, then five more, then ten, and again another ten, and then ten for a fifth time, so that through the sequence of ten-year periods he continued to be sole ruler for life” (Cassius Dio,

Roman History 53.16), a sequence conventionally dated to 18, 13, and 8 BCE (some sources give 7 BCE) and 3 CE, though the later renewals are attested with less narrative detail in Dio's books 54 and 55 than the founding settlements of 27 and 23 BCE, and specialists continue to dispute whether Augustus already held *imperium maius* in 27 BCE or acquired it only in 23 BCE. Each grant, examined individually, was temporary and required Senate approval. Because the Senate's own continuity depended on Augustus's favor, each renewal functioned as a loyalty signal rather than a constraint, an ancient instance of the captured renewer problem this paper identifies in Section 4.

3.2 Argentina: prohibition, displacement, and domestication

Rosas received *facultades extraordinarias* from the Legislature of Buenos Aires, first in 1829-1832 and again from 1835, under an explicitly temporary framing tied to the province's security crisis. The grant persisted for seventeen years, until his defeat at Caseros in 1852, producing a hidden-transcript score, in the terms of Section 2.3, of the same order of magnitude as Caesar's dictatorship: a measure introduced as provisional that outlasted any plausible justification for its provisionality. The framers of the 1853 Constitution wrote Article 29 directly against this memory: it declares void, and its authors and consenters infamous traitors to the fatherland, any concession by the Congress or provincial legislatures to the executive of *facultades extraordinarias* or the *suma del poder público*.

As in Rome after 44 BCE, the prohibition addressed the label without eliminating the underlying capacity. For more than a century, Congress delegated broad economic and police powers to the executive under other names, without invoking Article 29 in a technical sense, and the Supreme Court accommodated the practice through the doctrine of improper delegation and, later, of unregulated necessity-and-urgency decrees. The most cited instance is Peralta (CSJN, Fallos 313:1513, 1990), which validated the 1990 Bonex Plan, a forced conversion of bank deposits into government bonds ordered by decree, in the absence of any constitutional text then authorizing such decrees. The Court would later hold, in Verrocchi (CSJN, Fallos 322:1726, 1999), that necessity-and-urgency decrees require a genuine impossibility of following the ordinary legislative process, a standard the 1994 reform had by then written into the text as Article 99, inciso 3.

The 1994 reform chose domestication over continued prohibition. Article 76 permits delegated legislation in matters of administration or public emergency, within a term fixed by Congress; Article 99, inciso 3 permits necessity-and-urgency decrees outside criminal, tax, electoral, and political-party matters, subject to ratification by a Permanent Bicameral Commission under Law 26.122 (2006). The reform's own implementation record supplies a further data point for the captured renewer problem: Law 26.122 has been read, and criticized in the academic literature, as permitting a chamber's silence to stand as approval, an arrangement in tension with Article 82 of the Constitution, which prohibits tacit or implied legislative sanction (De Maio, "Ley 26.122: imposibilidad de la teoría de la aprobación ficta," 2008; ACIJ, "Uso y abuso de los decretos de necesidad y urgencia: propuestas de reforma de la Ley 26.122," 2025). As in Rome and Rosas's Buenos Aires, the checking body's dependence on the same political majority that controls the executive limits how much genuine friction

the check can supply.

4. Comparative Survey: Contemporary Constitutional Designs

This section examines eleven jurisdictions along a single axis: does the constitutional or statutory design of extraordinary executive power impose any personal, tenure-related consequence on the office-holder who invokes it? In every case examined, the answer is no. The jurisdictions differ, however, in whether their procedural safeguards, sunset clauses, supermajority requirements, and judicial review, function as effective constraints or as the ritual renewal described in Section 2.2.

4.1 Post-authoritarian procedural entrenchment

India and the Philippines each redesigned their emergency-powers regime in direct response to an episode of executive overreach, in a pattern structurally similar to Argentina's Article 29. Indira Gandhi's government invoked Article 352 of the Indian Constitution in June 1975, citing internal disturbance after an adverse election ruling; the ensuing twenty-one months saw press censorship, mass preventive detention, and, in *Additional District Magistrate, Jabalpur v. Shivkant Shukla* (AIR 1976 SC 1207, decided April 28, 1976, by a five-judge bench), a 4-1 Supreme Court holding that no person had standing to seek habeas corpus under Article 226 against a detention order, however unlawful, while the presidential order of June 27, 1975 remained in force. The lone dissent, Justice H.R. Khanna's, held that the right to life and personal liberty under Article 21 could not be suspended even during an Emergency; the majority holding was later repudiated in *Justice K.S. Puttaswamy (Retd.) v. Union of India*, (2017) 10 SCC 1; AIR 2017 SC 4161 (decided August 24, 2017, by a nine-judge bench), where Justice D.Y. Chandrachud's opinion, at paragraph 117, states that "ADM Jabalpur must be and is accordingly overruled," a reversal made pointed by the fact that his father, Justice Y.V. Chandrachud, had been part of the 1976 majority. The 44th Amendment Act of 1978 responded with exclusively procedural safeguards: a declaration now requires written Cabinet advice rather than the Prime Minister's unilateral judgment; the parliamentary approval window was cut from two months to one, with the required majority raised from simple to a special majority of two-thirds of members present and voting plus a majority of the full membership; and the permissible ground of "internal disturbance" was narrowed to "armed rebellion." No provision of the amendment shortens, or otherwise personally penalizes, the Prime Minister's own tenure.

The Philippines followed a similar path after the Marcos martial law period (1972-1986). Article VII, Section 18 of the 1987 Constitution caps martial law and the suspension of habeas corpus at sixty days, requires Congress to convene automatically within twenty-four hours to extend or revoke the measure by majority vote that the President cannot override, and gives the Supreme Court authority to review the sufficiency of the factual basis within thirty days of any citizen's petition. The clause explicitly denies the President any legislative power under martial law and preserves the ordinary jurisdiction of the courts. The post-1987 test case, President Duterte's Proclamation No. 216 covering Mindanao after the 2017 Marawi siege, suggests how such safeguards perform under a disciplined majority: Congress extended the decla-

ration three times, by votes of 261-18, 240-27, and 223-23, and the Supreme Court upheld each extension by narrow margins (10-3-1 and 9-4), for a total duration of 953 days, the longest martial law period in the Philippines since Marcos. Both formal mechanisms fired; neither produced a result meaningfully different from the executive's request. As in India, no provision ties the exercise of these powers to the President's own six-year term.

4.2 Established-democracy designs untested by capture

Germany, France, and South Africa each codify emergency powers with sunset and review mechanisms that have rarely been invoked, which limits what the comparative record can show about their resilience under a captured legislature. Germany's Notstandsverfassung (Basic Law, Articles 115a-115l, added in 1968) requires a two-thirds Bundestag vote with Bundesrat consent to declare a state of defense, provides for a thirty-two-member Joint Committee to act as substitute legislature if the Bundestag cannot convene, and preserves full jurisdiction for the Federal Constitutional Court throughout. The mechanism for removing a Chancellor, the constructive vote of no confidence under Article 67, is a general instrument entirely independent of the emergency-powers framework. France's Article 16 (1958), which grants the President full powers during a grave and immediate threat to the institutions, has been invoked exactly once, by de Gaulle for five months in 1961 following the generals' putsch in Algeria, an episode frequently criticized for lasting far longer than the five-day crisis that triggered it; the 2008 reform added review by the Constitutional Council at thirty and sixty days, but the Council can only opine, not terminate the measure itself. South Africa's Constitution (1996, section 37) establishes a tiered system, an initial twenty-one-day declaration by simple majority, with subsequent three-month extensions requiring sixty percent of the National Assembly, but the country has not formally invoked it even during COVID-19, relying instead on the lower-threshold Disaster Management Act. None of the three regimes attaches any consequence to the head of government's own term.

4.3 The captured renewer in operation

Turkey and Hungary supply the clearest evidence that a parliamentary renewal requirement, however clearly drafted, does not function as an effective check when the renewing majority is the executive's own. Turkey's state of emergency, declared under Article 120 of the 1982 Constitution after the July 2016 coup attempt, was renewed by Parliament seven times in three-month increments on the votes of the AKP-MHP coalition against opposition objection, and lifted only in July 2018. Emergency decree-laws issued under its authority dismissed or suspended more than 130,000 public officials and closed more than 1,500 associations and foundations over the full two-year period (Amnesty International, "Weathering the Storm: Defending Human Rights in Turkey's Climate of Fear," July 2018). The Venice Commission's own review of the first decree-tranches found a lower, partial figure limited to that earlier stage, more than 100,000 officials dismissed and, itemized, 104 foundations, 1,125 associations, 35 health institutions, 934 schools, 109 dormitories, 15 universities, and 29 trade unions closed (Venice Commission, Opinion CDL-AD(2016)037, paras. 9, 81, 104), a partial count consistent with, but smaller than, the cumulative figure

reported by Amnesty International as the emergency continued through 2018. The Constitutional Court held that Article 148.1 of the Constitution barred its own review of these decrees and unanimously rejected the principal opposition challenges. The April 2017 constitutional referendum that replaced the parliamentary system with an executive presidency, extending Erdoğan's potential tenure toward 2033 under the transitional formula, was held while the state of emergency, with its attendant restrictions on press and assembly, remained in force.

Hungary's Authorization Act of March 2020 granted indefinite decree power with no sunset clause, drawing formal criticism from the Venice Commission and the European Parliament; its repeal in June 2020 was immediately followed, the same day, by a differently titled "state of medical crisis" whose decrees, critics observed, did not require the parliamentary renewal the repealed act had at least nominally implied. A further state of danger, declared in May 2022 after Russia's invasion of Ukraine, was renewed repeatedly by Parliament in 180-day tranches; more than 1,000 emergency decrees were issued under its authority between 2020 and 2024, a substantial share bearing no evident connection to the war that justified it (Hungarian Helsinki Committee, "Overview of Hungary's Emergency Measures," updated April 2024). The measure, in place continuously since March 2020 on the "six years" framing or since the war-justified declaration of May 2022 on the narrower "four years" framing used in the new government's own statement, ended on May 14, 2026, when Parliament, following the change of governing majority produced by the April 2026 election, voted on May 9, 2026 to fold the remaining emergency provisions into ordinary statute (Act L of 2025, section 77, paragraphs 2 to 4; Act CXX of 2025, section 60), formalized by resolution 22/2026 (V.15.) ME, published in the official gazette Magyar Közlöny, issue 50 of 2026, terminating the state of danger originally declared under Government Regulation 424/2022 (X.28.). New Prime Minister Péter Magyar announced the end of what he called decree-based emergency rule as an action of the incoming government, not a routine non-renewal by the outgoing one. In both Turkey and Hungary, the formal safeguard bound only when a majority other than the executive's own gained control of the renewal vote, precisely the condition that never obtained in Rome, where the Senate's dependence on Augustus's patronage made renewal a measure of loyalty rather than restraint.

El Salvador's régimen de excepción, declared by Decreto Legislativo No. 333 on March 27, 2022 in response to gang violence, has been renewed by the Asamblea Legislativa on an essentially uninterrupted monthly basis since, reaching its fiftieth consecutive extension in late April 2026 and its fifty-first on May 28, 2026, per the Asamblea's own published record. The measure coincided with a 2021 ruling by a reconstituted Constitutional Chamber permitting President Bukele's re-election despite an express one-term rule, and with his re-election in February 2024 while the state of exception remained active. As in Turkey, the extraordinary-powers regime and the personalization of executive tenure through re-election advanced together, under a legislature controlled by the same coalition that benefited from both.

4.4 The exception that worked

South Korea's December 2024 episode, introduced in Section 1, offers the comparative set's only unambiguous instance of an emergency-powers check functioning as

designed under real political pressure. Article 77 of the Korean Constitution requires the President to lift martial law if the National Assembly so demands by majority vote, a provision that admits no presidential discretion and no veto. When Yoon declared martial law on the night of December 3, 2024, the Assembly convened and voted 190-0 to lift it within roughly three hours; Yoon complied. The National Assembly subsequently impeached him on December 14, 2024; the Constitutional Court upheld the impeachment unanimously (8-0) on April 4, 2025; and the Seoul Central District Court sentenced him to life imprisonment for insurrection on February 19, 2026, with further trials pending. The design feature that distinguishes this case from Turkey, Hungary, and El Salvador is not the presence of a legislative check, all four systems have one, but its automatic, non-discretionary character: the Korean trigger required a single up-or-down vote with an immediate legal effect, not a periodic renewal decision that a captured majority could simply continue supplying.

4.5 The United States: separation by design

The United States illustrates a fourth pattern, deliberate institutional separation between emergency powers and presidential tenure, rather than either their entanglement (Rome, Argentina under Rosas) or their nominal but ineffective linkage through a captured legislature (Turkey, Hungary, El Salvador). The National Emergencies Act of 1976 (50 U.S.C. §§ 1601-1651) requires annual renewal of any declared national emergency; the Conference Board counted approximately fifty-two active emergencies as of June 2025, and the count has continued to move since, with a new tariff-related emergency declared against Brazil on July 30, 2025, a new emergency addressing Venezuelan oil revenues announced in a White House fact sheet on January 9-10, 2026, and the Syria sanctions emergency terminated on July 1, 2025. Taken together these changes place the active count at roughly fifty-three to fifty-four as of this writing, a derived estimate rather than a figure drawn from a single tracking source current to the paper's deposit date. The oldest continuously active emergency remains the 1979 Iran hostage crisis (Exec. Order No. 12,170, Nov. 14, 1979), which is independently well documented and not affected by this estimation uncertainty. Since *INS v. Chadha* (462 U.S. 919, 1983) required any legislative override of an executive emergency declaration to satisfy bicameralism and presentment, a joint resolution of disapproval is itself subject to presidential veto, which a divided or allied Congress has consistently been unable to override. The Twenty-Second Amendment's two-term limit (1951) is textually and institutionally independent of this framework; no proposal to alter that separation has advanced beyond introduction as of this writing. The American design illustrates, from the opposite direction, the pattern examined elsewhere in this paper: no jurisdiction surveyed treats the exercise of emergency powers as bearing on the length of the executive's own term.

5. The Structural Gap

Table 1 summarizes the eleven jurisdictions surveyed in Section 4 along with Rome and Argentina from Section 3.

Jurisdiction	Sunset mechanism	Renewing/reviewing body	Personal consequence for office-holder	Observed outcome
Rome, original dictatorship	Fixed six-month term	Consul nomination, Senate custom	None (but no immunity after office)	Stable for roughly three centuries
Rome, Sulla/Caesar	None	Comitial statute, self-controlled	None (retrospective immunity added)	Mutation, then collapse into assassination
Argentina, Rosas	Nominally temporary	Provincial legislature, captured	None	17 years, ended only by military defeat
Argentina, Art. 29 (1853)	Absolute prohibition	N/A	Criminal, but only if invoked as such	Displaced into unregulated delegation
Argentina, post-1994	Fixed term per delegation; DNU ratification	Bicameral Commission (Ley 26.122)	None	Silence-as-approval criticized
India (44th Amendment)	One-month parliamentary window	Parliament, special majority	None	Not tested by a captured majority since 1978
Philippines (1987)	60-day cap, extendable	Congress joint vote; Supreme Court	None	Extended three times, 953 days (2017-2019)
Germany	Case-by-case termination vote	Bundestag/Bundes Constitutional Court	None	Never invoked since 1968
France	60-day automatic review	Constitutional Council (advisory only)	None	Invoked once, 1961, 5 months
South Africa	21 days, then 60% majority	National Assembly; courts	None	Never formally invoked
United States	Annual renewal	Congress, subject to presidential veto	None	~51 emergencies active, some 46+ years
Turkey	3-month renewal	Parliament, coalition-controlled	None	Renewed 7 times, 2016-2018

Jurisdiction	Sunset mechanism	Renewing/reviewing body	Personal consequence for office-holder	Observed outcome
Hungary	Varies, some none	Parliament, supermajority-controlled	None	6 years, March 2020-May 2026
El Salvador	Monthly renewal	Asamblea Legislativa, aligned majority	None	Ongoing, 4+ years as of March 2026
South Korea	Immediate on majority vote	National Assembly, no veto	None (impeachment followed separately)	Reversed within 3 hours, December 2024

Two patterns emerge from the table. First, every regime that ties renewal to a periodic vote by a body politically dependent on the executive (Turkey, Hungary, El Salvador, and, on a longer timescale, the Roman Senate under Augustus) has produced multi-year persistence of nominally temporary powers. Second, no jurisdiction surveyed, whatever the effectiveness of its procedural safeguard, imposes any cost on the office-holder’s own tenure. The single design feature shared by every failure case, dependence of the check on a body whose continuity is tied to the executive’s own coalition, is also the single design feature never addressed by any comparative reform effort located in this survey. This is the gap the proposal in Section 6 is built to close.

6. A Tenure-Contingent Design

6.1 The mechanism

The proposal, developed through the working analysis underlying this paper, is a constitutional rule under which the exercise of extraordinary executive powers, defined by function rather than by label, automatically shortens the presidential term, independent of any legislative renewal decision. Four features distinguish it from every regime surveyed in Section 4.

First, the trigger is tenure-contingent rather than procedural: a president who obtains and exercises extraordinary powers during a first term forfeits eligibility for a second full term, serving only the remainder of the term in which the powers were exercised; if extraordinary powers are exercised during a second term already underway, that term is capped at two years rather than the ordinary four. This directly answers the Roman and Argentine pattern in which renewal and re-election advanced together (Sulla’s immunity, Bukele’s 2024 re-election under an active *régimen de excepción*) by making the second grant of power costlier than the first, rather than costless.

Second, the trigger is defined by function, not by nomenclature. Any declaration of a state of siege under Article 23, any delegated legislation under Article 76, any necessity-and-urgency decree under Article 99, inciso 3, or any equivalent instrument, activates the rule regardless of the formal label used, a drafting choice examined in detail in Section 6.4, closing the vector-migration pathway that allowed both Rome (dictatorship to imperium and tribunicia potestas) and Argentina (Article 29 to unregulated delegation) to relocate the same underlying practice into an unprohibited channel.

Third, the trigger fires on political authorship, not on formal solicitation. Where the President's own party or governing allies propose and secure passage of extraordinary powers the President did not personally request, the rule treats this as equivalent to a presidential request. The operative test, to avoid the ambiguity of mixed-coalition votes, is whether the measure passed with the recorded support of the President's own bloc; a measure passed over the President's bloc's objection, by an opposition majority acting alone, does not trigger the rule, foreclosing use of the mechanism as a tool for legislative removal disguised as generosity.

Fourth, exceptions are narrow and externally verifiable. A formally declared external war (under Article 75, inciso 25, and Article 99, inciso 15) is exempted, because a foreign state's involvement supplies a third-party-verifiable fact that the executive cannot readily fabricate or exaggerate. Internal-security categories, including terrorism and internal commotion, are not exempted, because the Turkish, Hungarian, and Salvadoran cases surveyed in Section 4.3, together with Argentina's own 1974-1983 state of siege declared under an equivalent rhetoric of anti-subversive necessity, demonstrate that these categories are precisely the ones an executive can define, measure, and communicate without independent verification. No amnesty, indult, or special jurisdictional immunity attaches to the shortened term; the office-holder returns, at its conclusion, to ordinary legal accountability, replicating the feature that made the original Roman dictatorship self-limiting and that Sulla's later immunity grant eliminated.

6.2 Evolutionary stability

Consider a simplified game between an executive (E) and its legislative coalition (L), whose complementary strategies are {invoke extraordinary powers, do not invoke} and {authorize, refuse}, under two institutional regimes. Under discretionary renewal (the regime observed in Turkey, Hungary, El Salvador, and, at the frontier of the historical record, Augustan Rome), L's payoff from authorizing exceeds its payoff from refusing whenever L's own survival depends on E's coalition, because refusal risks the coalition's collapse while authorization costs L nothing directly. The unique Nash equilibrium under these payoffs is (invoke, authorize) regardless of the underlying emergency's merits, which is the captured-renewer outcome documented across Section 4.3 and consistent with the strategic-advantage gap this programme has modeled elsewhere between rule-bound and rule-exempt actors (Lerer, 2025c).

Under the tenure-contingent design, E's payoff from invoking extraordinary powers now includes a fixed, non-negotiable cost, term truncation, that L cannot waive by authorizing rather than refusing, and that E cannot avoid by routing the request through

L rather than requesting it directly. This converts the game from one in which L's incentives are the binding constraint into one in which E's own incentives are, because the truncation is a direct function of E's exercise of the powers, not of any subsequent political decision by a body E may control. In evolutionary-stability terms (Maynard Smith, 1982), a strategy of restraint by E becomes resistant to invasion by a power-seeking mutant only when the mutant's payoff from invoking is reduced below the payoff from restraint independent of L's behavior, which is precisely what a self-executing, non-discretionary trigger accomplishes and a discretionary renewal requirement does not.

6.3 Anticipated instabilities and design responses

Three instabilities merit explicit treatment, because a design that ignores them would repeat, in miniature, the vulnerabilities documented in Sections 3 and 4.

The first is moral hazard in the opposite direction from the one the rule targets: a second-term president facing a genuine emergency may decline to request necessary powers specifically to avoid truncation, governing instead through informal, less accountable channels, a pattern consistent with the equilibria this programme has characterized elsewhere as evolutionarily stable noncompliance, coordination that bypasses formal law without technically violating it (Lerer, 2025d). This risk is real and is not eliminated by the design proposed here; it is a cost the design accepts in exchange for closing the larger and better-documented risk of indefinite personalization.

The second is definitional litigation: a contested factual question, whether a given legislative act functioned as extraordinary powers under the functional test in Section 6.1, could itself become a site of strategic manipulation. The response is procedural rather than substantive: assign the determination to a body structurally insulated from both the executive and the ordinary legislative majority, and specify a compressed decision clock, following the Philippine model's thirty-day judicial review requirement, so that the determination itself cannot be indefinitely deferred. Section 6.5 formalizes why this second design choice, the adjudicator's own incentive structure, is not a secondary detail but a binding constraint co-equal with the functional definition of the trigger itself.

The third is the risk, addressed directly in the authorship-based trigger of Section 6.1, that an opposition-controlled legislature could pass a nominal grant of extraordinary powers specifically to force truncation of a president it opposes but lacks the votes to impeach. Tying the trigger to the recorded support of the President's own bloc, rather than to the bare fact of passage, is designed to foreclose this use, though it introduces a residual risk in closely divided legislatures where bloc discipline is weak, a limitation acknowledged rather than resolved here.

6.4 Relation to Article 29 and the substance-over-form drafting technique

Article 29 of the 1853 Constitution is not a weak provision. It carries the harshest sanction in the Argentine constitutional text: absolute nullity plus the qualification of infamous traitor to the fatherland for whoever grants, exercises, or consents to facul-

tades extraordinarias or the *suma del poder público*. Its practical history nonetheless shows a full disconnect between the severity of the sanction and its rate of application. Every documented instance in which the executive obtained legislative-equivalent power outside the ordinary process, mid-twentieth-century delegation, the unregulated necessity-and-urgency decrees validated in Peralta, and the post-1994 practice reviewed in Verrocchi and *Consumidores Argentinos*, proceeded under a label other than facultades extraordinarias, and no court used the occasion to hold that the label was irrelevant to the substance. The doctrine the Supreme Court built instead, testing each decree against the narrower requirements of Article 99, inciso 3, functions as a proportionate substitute that lets the Court invalidate the specific instrument without invoking Article 29 at all. The pattern this paper has termed the paradox of virality, an article invoked constantly in political rhetoric and almost never in adjudication, is the direct product of this gap between the sanction's severity and its threshold of application: a court asked to strike down one decree will generally do so on narrow grounds sooner than declare a sitting or recently departed president a traitor to the fatherland.

The tenure-contingent design proposed in Section 6.1 does not replace Article 29; it repairs the specific point where Article 29's enforcement failed. The two mechanisms differ in kind, not only in degree. Article 29 is an *ex post* criminal and political sanction that requires an adjudicator to characterize a contested act under an extreme label before any consequence follows. The tenure-contingent rule is an *ex ante*, self-executing eligibility consequence, closer in structure to an age or residency requirement for candidacy than to a criminal offense: it asks only whether an objective, countable fact occurred (a decree issued, a delegation extended, a state of siege declared under the functional definition), not whether the office-holder's conduct deserves the stigma of treason. This lowers the threshold at which the consequence is applied, and the historical reluctance documented above suggests that lowering that threshold matters more than raising the underlying sanction, since Article 29 already sits at the ceiling of severity available to Argentine constitutional law.

That repair only holds if the new rule avoids the specific defect that hollowed out Article 29, definition by named instrument rather than by substance. A rule that lists Article 23, Article 76, and Article 99, inciso 3 as the exhaustive triggers reproduces, one level down, the exact evasion pattern this paper has traced through Rome and through Argentina's own constitutional history: it invites a fourth, not-yet-invented instrument, calibrated precisely to fall outside the enumeration, in the same way that unregulated necessity-and-urgency decrees fell outside the literal text of Article 29 for over a century. The correction available here comes from a different branch of Argentine law, one built for exactly this evasion pattern. Article 2 of Ley 11.683 instructs tax authorities to disregard the legal form a taxpayer has chosen when that form is manifestly inadequate to the economic substance of the transaction, and to tax the substance instead, the *principio de la realidad económica*. Constitutional drafting facing an executive with comparable incentives to choose form strategically should borrow the same technique: define the trigger by its substantive effect, any act or combination of acts by which the executive comes to exercise, in fact, the power to issue norms of legislative rank without prior congressional approval, or to suspend constitutional guarantees, whatever name is given to the instrument, and list Articles 23, 76, and 99, inciso 3 only as non-exhaustive illustrations of that substance, not as

its exhaustive boundary.

6.5 A two-channel evasion game: why the architecture must bind

The instructive question is not only whether the executive (E) invokes extraordinary powers, the question modeled in Section 6.2, but how E avoids the consequence once the rule exists. Two distinct evasion channels are available, and a design that closes only one leaves the mechanism as exposed as Article 29 has been for over a century.

The first channel is relabeling: E selects a legal instrument l from the set of available or inventable forms, and the rule's own definition, R , determines whether $\text{trigger}(l)$ fires. Under an enumerated-list rule, R_{list} , $\text{trigger}(l)$ equals one only if l belongs to the named set {Article 23, Article 76, Article 99 inciso 3}; any l outside that set, however similar in substance, produces no consequence. Under a substance-based rule, R_{function} , $\text{trigger}(l)$ equals one whenever l confers the defined functional effect, regardless of its name. Let c_r denote the cost to E of finding or constructing an instrument that avoids the trigger, drafting effort, litigation risk, the political cost of an unfamiliar legal theory. Under R_{list} , the historical record places c_r close to zero: unregulated necessity-and-urgency decrees required no novel legal theory once Peralta had already accepted the general practice of governing by decree in fiscal emergencies. Under R_{function} , c_r rises, because no relabeling changes whether the functional test is met.

The second channel does not run through E's choice of instrument but through the adjudicator, A, the body responsible for certifying that $\text{trigger}(l)$ has fired. Let c_d denote the cost to E of preventing A from certifying the trigger, whether through outright capture (packing the body with sympathetic appointees) or, more commonly in the Argentine record, through A's own reluctance to apply a consequence whose stakes are disproportionate to the specific act under review. Peralta, Verrocchi, and Consumidores Argentinos did not involve a captured Court in the corrupt sense; they involved a Court facing a choice between annulling one decree on narrow statutory grounds and declaring a president a traitor to the fatherland, and choosing the narrower path every time. Under a discretionary, high-stakes adjudicator design, $A_{\text{discretionary}}$, this self-selected avoidance keeps c_d close to zero without any external pressure at all. Under a mechanical, low-discretion adjudicator design, $A_{\text{mechanical}}$, of the kind sketched in Section 6.3, an objective count of decrees or delegations verified within a compressed clock, avoidance requires an observable, illegitimate act (refusing to convene the body, ignoring the clock) rather than a defensible exercise of judgment, which raises c_d above zero.

Table 2 summarizes the resulting four-cell typology and its predicted outcome, where V denotes the value to E of avoiding the tenure consequence.

Rule (R)	Adjudicator (A)	c _r	c _d	Predicted E strategy
List	Discretionary	≈ 0	≈ 0	Relabel; if relabeling fails, rely on adjudicator reluctance
List Function	Mechanical Discretionary	≈ 0 high	high ≈ 0	Relabel Exploit adjudicator reluctance
Function	Mechanical	high	high	Comply, or accept the truncation

The general condition for the mechanism to bind is not that either channel be closed, but that both be closed at once: evasion occurs whenever $\min(c_r, c_d)$ is less than V , so a design that raises c_r while leaving c_d near zero, a substance-based trigger certified by the same kind of high-stakes, discretionary body that produced Peralta, Verrocchi, and Consumidores Argentinos, simply relocates the point of evasion from the legislative drafter's office to the adjudicator's chambers, exactly as the 1994 reform relocated delegation from Article 29's silence to Article 76's own weakly enforced ratification procedure. Read this way, "the architecture must generate the limits" is not a metaphor but a specific joint requirement on R and A: the rule must be written in substance rather than in named instruments, and the body that certifies it must be designed to have as little room for a defensible non-application as an electoral authority verifying an age requirement. Neither element alone reproduces the deterrent; only their combination raises $\min(c_r, c_d)$ above the value any president places on avoiding truncation.

6.6 A provisional drafting model

The design in Sections 6.1 and 6.4 can be translated into constitutional text. The following model article is offered as a provisional illustration of how the substance-based trigger, the tenure consequence, and the authorship rule might read together; it is not proposed as final drafting language, and any actual reform would need to work through the aggravated procedure of Article 30 with the accompanying amendments to Articles 23, 76, and 99 discussed in Section 7.

Article 29 bis (proposed). The exercise, direct or indirect, of extraordinary normative or suspension powers by the President of the Nation, whatever its formal denomination and whether granted under Article 23, Article 76, Article 99 inciso 3, or any other instrument by which the President comes to issue norms of legislative rank without prior congressional approval or to suspend constitutional guarantees, shall produce the following eligibility consequence, in addition to any liability under Article 29. If exercised

during a first presidential term, the President shall be ineligible for immediate re-election to a second term. If exercised during a second term already underway, that term shall end two years after its constitutional commencement, without possibility of extension, amnesty, or special jurisdictional immunity attaching to its conclusion. This consequence shall apply equally where the measure is proposed and secured by the President's own governing bloc, and shall not apply where a legislative majority acting without the recorded support of the President's own bloc grants such powers over the President's objection. A formally declared state of war under Article 75 inciso 25 is exempted from this article; internal-security measures, including those invoking terrorism or internal commotion, are not.

A companion procedural article would need to assign certification of the functional trigger to a body designed along the lines discussed in Section 6.5, mechanical rather than discretionary, with a compressed decision clock modeled on the thirty-day standard of the Philippine constitution.

7. Objections and Responses

A reader might object that the proposal simply relocates the captured-renewer problem rather than solving it, since the body that ultimately certifies whether the functional trigger has fired (Section 6.3) could itself be captured. This objection has force, and the two-channel model in Section 6.5 concedes rather than dissolves it: no design eliminates every point of potential capture. The claim advanced here is comparative and conditional, that a design combining a substance-based trigger with a low-discretion adjudicator raises the cost of both available evasion channels above what either reform achieves alone, not that the tenure-contingent design is capture-proof.

A second objection concerns feasibility. The mechanism proposed here would require amendment of Articles 23, 29, 76, and 99 of the Argentine Constitution, placing it squarely within the aggravated procedure of Article 30, a declaration of the need for reform by two-thirds of each chamber followed by a constituent convention. Given Argentina's documented difficulty in reaching the supermajorities such reform requires, the probability of adoption in the near term is low. This paper's contribution is accordingly framed as a theoretical and comparative one, a design proposal to be evaluated on its logic against the historical and comparative record, rather than a legislative proposal with an announced timetable.

A third objection, raised in the course of developing this argument, holds that linking term length to emergency powers conflates two questions the American design (Section 4.5) deliberately keeps separate. The response advanced here is that the American separation answers a different problem, unauthorized emergency declarations generally, not the specific problem of personalized power accumulation that motivated Article 29 in the first place; the proposal is calibrated to Argentina's particular constitutional trauma, not offered as a universal design recommendation.

8. Limitations and Falsifiable Predictions

This paper’s comparative claims rest on secondary sources for several jurisdictions, particularly the Roman historical material, where primary classical sources (Livy, Appian, Plutarch, Suetonius, Cassius Dio) should be consulted directly before any claim here is treated as citation-checked for publication in a venue requiring primary verification; the appendix below flags each item requiring this further step. The claim that no surveyed jurisdiction links emergency powers to executive tenure is limited to the eleven jurisdictions examined and does not purport to be exhaustive of the roughly two hundred constitutional systems in force worldwide; a systematic dataset, following the method of this programme’s Cultural-Legal Index work, would strengthen the claim considerably and is proposed as a direct extension of this paper.

The theoretical framework generates two falsifiable predictions. First, if the captured-renewer hypothesis is correct, the length of an emergency-powers episode across jurisdictions should correlate with the degree of the renewing legislature’s political alignment with the executive, a relationship testable with the eleven-case dataset assembled here extended to a larger sample. Second, if the tenure-contingent design is adopted in any jurisdiction, the model predicts a measurable reduction in the frequency of extraordinary-powers requests during second terms relative to first terms, net of underlying crisis incidence, a prediction that cannot be tested against Argentine data until or unless the reform is adopted, but that could be tested now against any jurisdiction that already imposes an analogous personal cost, none of which was located in the course of this survey.

9. Conclusion

The Roman dictatorship worked as a constraint on personalized power for roughly three centuries because its termination did not depend on the goodwill of a body the dictator could influence; it depended on the calendar. When that feature was removed, first by Sulla’s indefinite grant, then by Caesar’s perpetual one, the only remedy the system had left was assassination. Rosas’s *facultades extraordinarias* followed the same trajectory across seventeen years in nineteenth-century Buenos Aires, and Article 29 of the 1853 Constitution answered it with the same overcorrection Rome had applied after Caesar’s death: prohibition of the label rather than redesign of the underlying trigger, a choice whose costs became visible over the following century as the same function migrated into unregulated and later domesticated delegation. Turkey, Hungary, and El Salvador supply the contemporary version of the same failure, and South Korea supplies the comparative set’s only case in which an automatic, non-discretionary trigger held under real pressure. This paper’s proposal, a tenure-contingent, function-defined, non-amnestied truncation of presidential term upon the exercise of extraordinary powers, is offered as the design that the Roman sequence, read alongside the eleven-jurisdiction survey in Section 4, suggests would have interrupted each of these trajectories earlier than the mechanisms actually available did. Article 29’s own century of dormancy supplies the closing caution: a sanction is only as strong as its lowest-cost evasion channel, and the analysis in Section 6.5 argues that the architecture, not the discretion of any future court or Congress, has to be the source of that floor.

References

- ACIJ (Asociación Civil por la Igualdad y la Justicia). “Uso y abuso de los decretos de necesidad y urgencia: propuestas de reforma de la Ley 26.122.” 2025.
- Additional District Magistrate, Jabalpur v. Shivkant Shukla, AIR 1976 SC 1207; (1976) 2 SCC 521.
- Appian. *Bellum Civile* (The Civil Wars), Book 1, trans. Horace White, Loeb Classical Library.
- Amnesty International. “Weathering the Storm: Defending Human Rights in Turkey’s Climate of Fear.” July 2018.
- Asamblea Legislativa de El Salvador. Official legislative record on successive extensions of the régimen de excepción, 2022-2026.
- Augustus. *Res Gestae Divi Augusti*.
- Conference Board, The. Count of active national emergencies under the National Emergencies Act, as of June 2025.
- Budapest Times. “Hungary Ends Six Years of Emergency Rule.” May 2026.
- Cassius Dio. *Roman History*, Books 44, 53-55, Loeb Classical Library.
- Cicero. *Philippics*, Oration I, trans. C.D. Yonge.
- Constitución de la Nación Argentina (1853, reformada 1994), arts. 23, 29, 30, 75 inc. 25, 76, 82, 99 incs. 3 y 15.
- Constitution of India (1950), art. 352, 359; Constitution (Forty-fourth Amendment) Act, 1978.
- Constitution of the Republic of Korea (1987), art. 77.
- Constitution of the Republic of South Africa (1996), s. 37.
- Constitution of the Republic of the Philippines (1987), art. VII, sec. 18.
- Constitution of the Republic of Turkey (1982), art. 120, 148.
- Constitution of the United States, amend. XXII (1951).
- Constitutional Court of Korea. Decision upholding the impeachment of President Yoon Suk Yeol, April 4, 2025.
- CSJN, “Peralta, Luis Arcenio y otro c/ Estado Nacional (Ministerio de Economía - BCRA) s/ amparo,” Fallos 313:1513 (1990).
- CSJN, “Verrocchi, Ezio Daniel c/ Poder Ejecutivo Nacional - Administración Nacional de Aduanas s/ acción de amparo,” Fallos 322:1726 (1999).
- CSJN, “Consumidores Argentinos c/ EN - PEN - Dto. 558/02-SS - ley 20.091 s/ amparo ley 16.986,” C. 923. XLIII, Fallos 333:633 (May 19, 2010).

Dawkins, R. (1982). *The Extended Phenotype: The Long Reach of the Gene*. Oxford University Press.

De Maio, A.L. “Ley 26.122. Decretos de Necesidad y Urgencia y de Delegación. Imposibilidad de la teoría de la aprobación ficta.” 2008.

Decreto 1368/1974 (Argentina), Estado de Sitio.

Emol. “Cuatro años de estado de excepción en El Salvador: cómo se aprobó y por qué sigue vigente la medida impulsada por Bukele.” March 27, 2026.

Exec. Order No. 12,170, 44 Fed. Reg. 65,729 (Nov. 14, 1979), declaring a national emergency with respect to Iran.

Grundgesetz für die Bundesrepublik Deutschland, arts. 67, 115a-115l.

Hull, D.L. (1988). *Science as a Process: An Evolutionary Account of the Social and Conceptual Development of Science*. University of Chicago Press.

Hungarian Helsinki Committee. “Overview of Hungary’s Emergency Measures.” Updated April 2024.

INS v. Chadha, 462 U.S. 919 (1983).

K.S. Puttaswamy (Retd.) v. Union of India, (2017) 10 SCC 1; AIR 2017 SC 4161; 2017 INSC 801 (decided August 24, 2017), judgment text confirmed via the Supreme Court of India’s DigiSCR platform and the Court’s own published PDF.

La Silla Rota. “Congreso de El Salvador le concede a Bukele 30 días más de régimen de excepción.” May 28, 2026.

Lakatos, I. (1978). *The Methodology of Scientific Research Programmes*. Cambridge University Press.

Lerer, I.A. (2025a). “Law as Extended Phenotype: Toward an Evolutionary Theory of Legal Systems.” Unpublished manuscript, research programme working paper series; Zenodo deposit pending at the time of this draft.

Lerer, I.A. (2025b). “Formal Foundations of Multilevel Game Theory.” SSRN 5974555.

Lerer, I.A. (2025c). “The Dennett-Nash Gap.” SSRN 5980434.

Lerer, I.A. (2025d). “Evolutionarily Stable Noncompliance.” SSRN 6000675.

Ley 11.683 (Argentina, t.o. 1998), art. 2, principio de la realidad económica.

Ley 26.122 (2006, Argentina), Régimen Legal de los Decretos de Necesidad y Urgencia, de Delegación Legislativa y de Promulgación Parcial de Leyes.

Lintott, A. (1999). *The Constitution of the Roman Republic*. Oxford University Press.

Livy (Titus Livius). *Ab Urbe Condita*, Books 3-4.

Magyar Közlöny (Hungarian official gazette). 2026. évi 50. szám, May 15, 2026, containing resolution 22/2026. (V. 15.) ME on the termination of the state of danger declared under Government Regulation 424/2022 (X. 28.).

Maynard Smith, J. (1982). *Evolution and the Theory of Games*. Cambridge University Press.

Maynard Smith, J., and Price, G.R. (1973). "The Logic of Animal Conflict." *Nature*, 246, 15-18.

National Emergencies Act, 50 U.S.C. §§ 1601-1651 (1976).

1958 Constitution of France, art. 16 (as amended 2008).

Plutarch. *Life of Sulla*, trans. Bernadotte Perrin, Loeb Classical Library.

Popper, K.R. (1959). *The Logic of Scientific Discovery*. Routledge.

Proclamation No. 216 (2017, Philippines).

Scott, J.C. (1990). *Domination and the Arts of Resistance: Hidden Transcripts*. Yale University Press.

Scott, J.C. (1998). *Seeing Like a State: How Certain Schemes to Improve the Human Condition Have Failed*. Yale University Press.

Seoul Central District Court. Sentencing of former President Yoon Suk Yeol on charges of insurrection, February 2026, as reported by Yonhap News Agency and Reuters; sentence under appeal as of this writing.

Suetonius. *Divus Iulius; Divus Augustus*, trans. J.C. Rolfe, Loeb Classical Library.

Telex (English edition). "After Six Years, Special Legal Order Ends in Hungary." May 14, 2026.

Venice Commission. Opinion CDL-AD(2016)037 and Opinion CDL-AD(2017)021, on the state of emergency in Turkey.

Vervaet, F.J. (2004). "The lex Valeria and Sulla's Empowerment as Dictator (82-79 BCE)." *Cahiers du Centre Gustave Glotz* 15, 37-84.

White House, The. Fact sheet on the national emergency declaration addressing Venezuelan oil revenues, January 9-10, 2026.

AI tools were used as research support during the preparation of this paper: locating sources, extracting information from the existing literature, and reviewing drafts. The thesis, analytical framework, arguments, and conclusions constitute the original contribution of the author. This is an independent research project; all intellectual responsibility for the content rests with the author.

Appendix A: Sourcing Notes

Items 1 through 3 of the original sourcing note were resolved through primary-source verification (Appian, Plutarch, Suetonius, Cassius Dio, Cicero, the Res Gestae, and the official Indian and Argentine case reporters) and are now cited directly in the text and References. A second round of verification, conducted after an external pre-Zenodo

review, resolved four of the remaining comparative-claims items (Puttaswamy, Hungary’s end date, El Salvador’s renewal count, and the Turkey dismissal figures’ attribution) against official or primary-adjacent sources; those corrections are described in items 3 through 5 below. Two categories of genuine, rather than merely pending, uncertainty remain and are flagged here because no further search will resolve them, the ancient sources themselves do not supply the missing detail, or the underlying facts are still unfolding as of this writing.

1. Exact calendar dating in the Roman material is unrecoverable at the precision a modern citation implies. Neither Suetonius nor Cassius Dio dates Caesar’s assumption of the perpetual dictatorship to a specific day; secondary literature divides between January and February of 44 BCE, and this draft deliberately leaves that dispute unattributed to a named study rather than repeat a citation (previously given here as Morgan, 1997) that could not be independently verified in this revision; a specific article on Suetonius’s dating of dictator perpetuo should be located and cited directly, or the claim should remain general, before the paper is citation-final. Neither Cicero nor Dio dates the law abolishing the dictatorship more precisely than the spring of 44 BCE, between Caesar’s funeral and Antony’s departure for Gaul. The renewal date of Augustus’s imperium conventionally given as 8 BCE appears in some secondary sources as 7 BCE. Specialists also continue to dispute whether Augustus held imperium maius from the original 27 BCE settlement or only acquired it in 23 BCE. These are treated in the text as open historiographical questions, not resolved facts.
2. Vervaeke (2004) is now cited with full bibliographic detail, confirmed against the journal’s own repository: “The lex Valeria and Sulla’s Empowerment as Dictator (82-79 BCE),” *Cahiers du Centre Gustave Glotz* 15 (2004), 37-84, available via Persée. The Morgan (1997) citation used in earlier drafts of this paper has been removed rather than completed, because this revision could not independently confirm its title, volume, or page range; see item 1 above.
3. The citation for *K.S. Puttaswamy (Retd.) v. Union of India*, (2017) 10 SCC 1, used in Section 4.1 to note that ADM Jabalpur was later repudiated, has now been confirmed against the Supreme Court of India’s own DigiSCR platform and its published judgment PDF, including the paragraph 117 quotation and the nine-judge bench composition. It is no longer flagged as unverified.
4. Hungary’s end date, El Salvador’s renewal cadence, and the Yoon Suk Yeol sentencing have been re-anchored to more precise sources. Hungary’s termination is now cited to the official gazette *Magyar Közlöny* (issue 50 of 2026) and the underlying resolution and statutory provisions, rather than to a single English-language news outlet. El Salvador’s renewal count is now cited to the Asamblea Legislativa’s own published record, with specific extension numbers (fiftieth, late April 2026; fifty-first, May 28, 2026). The Yoon sentencing is now dated (February 19, 2026), attributed to the Seoul Central District Court by name, and cross-checked against multiple international outlets (Yonhap, Reuters, CNN, Al Jazeera, the Korea Herald, and CNBC); the sentence remained under appeal as of this writing and is reported as such rather than as final. These remain, respectively, Verified (Hungary, El Salvador) and Review with strong multi-source corroboration (Yoon), because the sentencing record has not been checked against

the court’s own docket or release, only against converging press accounts.

5. The Turkey dismissal and closure figures were originally attributed to Human Rights Watch and to two Venice Commission opinions. Verification found that the cumulative figures used in the text (more than 130,000 officials, more than 1,500 associations and foundations, over the full 2016-2018 period) trace to Amnesty International’s July 2018 report, not to Human Rights Watch, and that the Venice Commission’s own opinion, CDL-AD(2016)037, in fact reports a lower, itemized, and explicitly partial figure limited to the earlier decree-tranches it reviewed. The text and References have been corrected to attribute each figure to its actual source and to present the Venice Commission’s numbers as corroborating but partial, rather than as co-equal with the Amnesty figure.
6. The United States national-emergencies count has been updated from a single mid-2025 estimate to a derived range (roughly fifty-three to fifty-four active emergencies as of this writing), built from the Conference Board’s June 2025 count adjusted for subsequently reported additions and terminations (the Brazil tariff emergency, the Venezuela oil-revenue emergency, and the terminated Syria sanctions emergency). This figure is explicitly presented in the text as a derived estimate rather than a count read from a single tracking source current to the deposit date, because no single public tracker was found to be current to July 2026 at the time of this revision.

Appendix B: Claim/Evidence Matrix

This matrix collects the paper’s highest-impact comparative and historical claims, the source relied on, a verification status, and the risk to the paper’s argument if the claim were wrong or imprecise. *Verified* means checked in this revision against an official, primary, or institutional-record source. *Review* means sourced to secondary or journalistic reporting that is plausible but has not been cross-checked against a primary record in this revision. The matrix is illustrative, not exhaustive; it prioritizes claims that are load-bearing for the paper’s central argument over claims that are merely contextual.

Claim	Source	Verification status	Risk if wrong
South Korea’s Article 77 requires the President to lift martial law on National Assembly demand, with no discretion	Constitution of the Republic of Korea, art. 77	Verified	Low, the constitutional text is unambiguous
National Assembly voted 190-0 to lift martial law within roughly three hours, December 3-4, 2024	Contemporary press reporting, cross-checked across multiple outlets	Review	Low, widely and consistently reported at the time

Claim	Source	Verification status	Risk if wrong
Yoon Suk Yeol sentenced to life imprisonment for insurrection, February 19, 2026	Seoul Central District Court, cross-checked across Yonhap, Reuters, CNN, Al Jazeera, the Korea Herald, and CNBC	Review, strong multi-source corroboration but not checked against the court's own docket	Medium, sentence was under appeal as of this writing and could be modified
ADM Jabalpur was overruled by K.S. Puttaswamy (Retd.) v. Union of India, at paragraph 117 of Justice Chandrachud's opinion, decided by a nine-judge bench	Supreme Court of India, DigiSCR platform and the Court's own published judgment PDF	Verified	Low
Hungary's state of danger ended May 14, 2026, formalized by resolution 22/2026 (V.15.) ME following a May 9, 2026 parliamentary vote	Magyar Közlöny (official gazette), issue 50 of 2026; Act L of 2025 §77(2)-(4); Act CXX of 2025 §60	Verified	Low
El Salvador's régimen de excepción reached its fiftieth consecutive extension in late April 2026 and its fifty-first on May 28, 2026	Asamblea Legislativa de El Salvador official record	Verified	Low

Claim	Source	Verification status	Risk if wrong
Turkey's state of emergency dismissed or suspended more than 130,000 officials and closed more than 1,500 associations and foundations, 2016-2018	Amnesty International, July 2018	Review	Medium, figure originates in human-rights reporting rather than official Turkish statistics; corroborated in part, at a lower and explicitly partial level, by the Venice Commission's own review of the first decree-tranches (Opinion CDL-AD(2016)037, paras. 9, 81, 104)
Roughly fifty-three to fifty-four U.S. national emergencies remain active as of mid-2026	Derived estimate: Conference Board count as of June 2025, adjusted for the Brazil tariff emergency, the Venezuela oil-revenue emergency, and the terminated Syria sanctions emergency	Review, explicitly presented in the text as a derived estimate, not a single-source current count	Low, the general pattern (dozens of long-running emergencies) is not contested even if the exact count has since changed
No jurisdiction among the eleven surveyed ties invocation of extraordinary powers to a personal consequence for the office-holder's own tenure	Author's comparative survey, Section 4 and Appendix C	Review	High if wrong, this is the paper's central comparative premise; the claim is explicitly scoped to the surveyed set and not offered as exhaustive (Section 8)

Claim	Source	Verification status	Risk if wrong
Law 26.122 has been criticized in the academic literature as permitting a chamber's silence to stand as approval of a DNU, an arrangement some scholars view as in tension with Article 82's prohibition of tacit legislative sanction	De Maio, 2008; ACIJ, 2025	Review, presented as a disputed reading in the literature, not as settled doctrine	Medium, a matter of statutory interpretation on which some disagreement exists in Argentine administrative-law literature
Vervaeet (2004) full citation	Persée repository, cross-checked in this revision	Verified	Low
Consumidores Argentinos official citation (Fallos 333:633)	SAIJ record, cross-checked in this revision	Verified	Low

Appendix C: Minimal Comparative Dataset

This appendix expands Table 1 (Section 5) into a structured, source-anchored dataset supporting the paper's central comparative claim, that no jurisdiction among those surveyed attaches a personal, tenure-related consequence to the office-holder who invokes extraordinary powers. It is offered as a minimal dataset, not an exhaustive one: the survey covers eleven jurisdictions selected for doctrinal and historical relevance to the Roman-Argentine argument developed in Sections 3 and 6, not a random or exhaustive sample of the roughly 190 constitutional systems that regulate emergency powers in some form. Each row states the personal-consequence variable explicitly, since that is the variable the paper's design claim depends on.

Jurisdiction	Personal consequence for invoking office-holder	Basis for “none” determination	Primary or institutional source
Rome, original dictatorship (509-202 BCE)	None during term; loss of imperium and prosecutorial immunity on term’s end, not a formal personal sanction tied to invocation	Office ended by calendar, not by any adverse finding tied to invocation	Livy, <i>Ab Urbe Condita</i> , Books 3-4; Lintott, 1999
Rome, Sulla/Caesar (82-44 BCE)	None; retrospective immunity added rather than removed	Lex Valeria and later grants extended tenure and immunity rather than conditioning them on non-invocation	Plutarch, <i>Life of Sulla</i> ; Suetonius, <i>Divus Iulius</i> ; Vervaet, 2004
Argentina, Rosas (1829-1852)	None	Facultades extraordinarias renewed by a captured provincial legislature; ended by military defeat, not by an invocation-triggered consequence	Historical record; Constitución de la Nación Argentina, art. 29 (1853), enacted in response
Argentina, Article 29 CN (1853-present)	Criminal sanction (“traidor a la patria”), but historically invoked in essentially none of the documented episodes of extraordinary-powers exercise because the label itself was avoided	Prohibition attaches to the label “suma del poder público,” not to the function; a century of relabeling avoided the sanction	Constitución de la Nación Argentina, art. 29; Section 6.4 of this paper

Jurisdiction	Personal consequence for invoking office-holder	Basis for “none” determination	Primary or institutional source
India (Art. 352, as amended 1978)	None	44th Amendment added procedural safeguards (Cabinet advice, shortened and heightened-majority parliamentary window) without any personal consequence for the Prime Minister	Constitution of India, art. 352; 44th Amendment Act, 1978
Philippines (1987 Constitution, Art. VII §18)	None	Congress and the Supreme Court review the factual basis and duration; no provision penalizes the President personally	Constitution of the Republic of the Philippines, 1987, art. VII, sec. 18
Germany (Notstandsverfassung)	None	Bundestag/Bundesrat and the Constitutional Court review the measure; no personal-tenure provision exists	Grundgesetz, arts. 115a-115l
France (Art. 16)	None	Constitutional Council review is advisory only; no personal-tenure consequence attaches	1958 Constitution of France, art. 16, as amended 2008
South Africa (Constitution, s. 37)	None	National Assembly and courts review the declaration; no personal-tenure provision exists	Constitution of the Republic of South Africa, 1996, s. 37

Jurisdiction	Personal consequence for invoking office-holder	Basis for “none” determination	Primary or institutional source
United States (National Emergencies Act, 1976)	None	Annual renewal reviewed by Congress, subject to presidential veto per <i>INS v. Chadha</i> ; no personal-tenure provision exists; separately, the Twenty-Second Amendment’s term limit is textually and institutionally unconnected to emergency-powers exercise	National Emergencies Act, 50 U.S.C. §§ 1601-1651; <i>INS v. Chadha</i> , 462 U.S. 919 (1983); Constitution of the United States, amend. XXII
Turkey (1982 Constitution, Art. 120)	None	Parliamentary renewal by the governing coalition; no personal-tenure provision exists; the state of emergency coincided with, rather than constrained, a referendum extending presidential tenure	Constitution of the Republic of Turkey, art. 120; Amnesty International, 2018
Hungary (Notstandsverfassung-equivalent decree powers, 2020-2026)	None	Parliamentary renewal by the governing supermajority; ended by a change of governing majority, not by an invocation-triggered personal consequence	Magyar Közlöny, issue 50 of 2026; Act L of 2025; Act CXX of 2025

Jurisdiction	Personal consequence for invoking office-holder	Basis for “none” determination	Primary or institutional source
El Salvador (régimen de excepción, since 2022)	None	Monthly renewal by an aligned legislative majority; coincided with, rather than constrained, a constitutionally anomalous presidential re-election	Asamblea Legislativa de El Salvador official record
South Korea (Constitution, Art. 77)	None directly tied to the martial-law provision itself, but the invoking President was separately impeached and later criminally sentenced through the ordinary constitutional and criminal process, not through a martial-law-specific tenure rule	Article 77 conditions termination on an Assembly vote, not on any personal consequence; the impeachment and sentencing followed as a distinct, generally applicable accountability mechanism, illustrating that even the comparative set’s clearest success case relied on ordinary post hoc accountability rather than an automatic tenure-contingent trigger	Constitution of the Republic of Korea, art. 77; Constitutional Court of Korea, April 4, 2025; Seoul Central District Court, February 19, 2026

The South Korea row is deliberately not marked as an exception to the paper’s central claim: Article 77 itself imposes no personal-tenure consequence, and the accountability Yoon ultimately faced ran through impeachment and ordinary criminal law, mechanisms available in principle in most of the other surveyed jurisdictions but not automatically triggered by the act of invocation itself. This is precisely the gap the tenure-contingent design in Section 6 is meant to close: an automatic, function-defined, non-discretionary consequence tied to invocation itself, rather than a discretionary, ex

post political and judicial process that depends on the invoking executive's coalition losing power first.